

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

SAMUEL MURRAY,

Plaintiff,

v.

DISTRICT OF COLUMBIA et al.,

Defendants.

Civil Action 06-02013 (HHK)

MEMORANDUM

Samuel Murray, a District of Columbia employee in the Department of Youth Rehabilitation Services (“Department”), brings this action against the District of Columbia (“District”), and Monica Bennet (“Bennet”), a supervisor in the Department. Murray claims that Bennet sexually harassed him and that he was subjected to retaliation. Murray, proceeding *pro se*, purports to base his claims on the “CIUVIL (sic) RIGHTS ACT OF 1966, AS AMENDED.” Complaint 1.¹ Before the court is the District’s motion to dismiss or, in the alternative, for summary judgment (#21). Upon consideration of the motion and the record of this case, the court concludes that the motion must be granted.

¹ It is apparent that Murray grounds his claims on Title VII of the Civil Rights Act of 1964, as amended 42 U.S.C. § 2000e-16(a)(“Title VII”).

I.

Murray, a driver in the Transportation Unit of the Department, claims that Bennet sexually harassed him. According to the complaint, “in February 2002, during [Murray’s] first week of employment at [the Department][he] had a conversation with Monica Bennet, Supervisor, in which Supervisor Bennet expressed negative perceptions of men and general animosity towards men.” Complaint 2. When Murray reported Bennet’s comments he was immediately reassigned so that he no longer reported to her. Thereafter, however, Murray had several unpleasant contacts and experiences with Bennet. For example, in April 2002, Murray was assigned a task by Bennet and was told that the task could be completed at a later time. When, Murray was unable to complete the task immediately, however, “Bennet issued Murray a written warning for insubordination.” Id. On another occasion, although Murray had been approved leave, Bennet nevertheless “wrote Murray up” for taking leave without approval.

On yet another occasion, Bennet made graphic sexual comments to Murray when he was standing near three other male employees. According to Murray, Bennet used sexually explicit language when she described her interpretation of the definition of the term “pimp juice” which was written down the leg of his pants. Bennet then “proceeded to assault [Murray] during the incident, stroking [his] leg, hip, and buttocks region as she spoke with [Murray] in a sexual and seductive manner.” Id at 4.

According to Murray, he reported these incidents to persons in authority at the Department and wrote a letter to the Mayor’s Office, but nothing was done. Instead Bennet was allowed to do various things which Murray charges were a form of retaliation for his having made a complaint against her.

II.

A. Exhaustion of Administrative Remedies

The district moves to dismiss this case on the grounds that Murray has failed to allege that he has exhausted his administrative remedies. Reciting familiar legal principles, the District correctly points out that a non-federal employee complaining of a violation of Title VII must first file an administrative charge with the EEOC and allow the agency enough time to act on the charge. Only after the EEOC has notified the claimant of its decision to dismiss the charge, or its inability to timely file a civil action, can the claimant bring a lawsuit himself.

If a Title VII plaintiff fails to allege that he has exhausted his administrative remedies, the proper course is to dismiss the plaintiff's claim without prejudice. 2006 WL 1825796 (D.D.C).

Here, Murray neither has alleged that he exhausted his administrative remedies nor, in response to the instant motion, asserted that he has done so. Accordingly, Murray's complaint against the District is dismissed without prejudice.

B. Vicarious liability of Bennet

Title II prohibits acts of discrimination by an "employer" and makes a clear distinction between "persons" and "employers." 42 U.S.C. § 2000e-2(a). The significance of this distinction for Murray is that he is unable to maintain a Title VII action against Bennet in her individual capacity. *Gary v Long*, 59 F3d 1391, 1399 (D.C. Cir.), cert. denied, 516 U.S. 1011, 133 L.Ed. 2 493, 116 S.Ct. 569 (1995).

III.

For the above stated reasons this action is dismissed against the District without prejudice and dismissed against Bennet with prejudice.

An appropriate order accompanies this memorandum.

Henry H. Kennedy, Jr.
United States District Judge

§ 28.93

spirits are to be withdrawn, the exporter shall prepare TTB Form 5100.11 as an application, in accordance with the instructions on the form, and shall forward all copies of the form in accordance with instructions for the form. If the exporter is the proprietor of the bonded premises of the distilled spirits plant from which the spirits are withdrawn, the exporter shall prepare TTB Form 5100.11 as a notice in accordance with the instructions on the form.

(b) *Manufacturing bonded warehouse.* Application for the withdrawal of distilled spirits without payment of tax for transportation to and deposit in a manufacturing bonded warehouse shall be made by the proprietor of such warehouse on TTB Form 5100.11, in accordance with the instructions on the form.

(Approved by the Office of Management and Budget under control number 152-0190)

(Sec. 201, Pub. L. 85-859, 72 Stat. 1362, as amended (26 U.S.C. 5214); Sec. 3, Pub. L. 91-659, 84 Stat. 1965, as amended (26 U.S.C. 5066))

[T.D. ATF-198, 50 FR 8559, Mar. 1, 1985, as amended by T.D. TTB-8, 69 FR 3832, Jan. 27, 2004]

§ 28.93 Carrier to be designated.

The name of the carrier or carriers to be used in transporting the distilled spirits from the bonded premises of the distilled spirits plant to the port of export, or to the customs bonded warehouse, or to the manufacturing bonded warehouse, or to the foreign-trade zone, as the case may be, shall be shown in the application. If the spirits are shipped on a through bill of lading and all carriers handling the spirits while in transit are not known, the name of the carrier to whom the distilled spirits are to be delivered at the shipping premises shall be shown.

(72 Stat. 1362, 84 Stat. 1965; 26 U.S.C. 5214, 5066)

[T.D. 7112, 36 FR 8581, May 8, 1971. Redesignated at 40 FR 16835, Apr. 15, 1975, and amended by T.D. ATF-62, 44 FR 71722, Dec. 11, 1979]

§ 28.94 Containers.

Distilled spirits authorized to be withdrawn without payment of tax from the bonded premises of a distilled spirits plant under the provisions of

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this subpart may be withdrawn from such establishment in such containers as may be authorized in part 19 of this chapter. Except as otherwise provided in this part, the gauging, packing, bottling, casing, marking, closing and reporting of distilled spirits prior to withdrawal shall be in accordance with the provisions of part 19 of this chapter.

(Sec. 201, Pub. L. 85-859, 72 Stat. 1358, as amended, 1360, as amended, 1374, as amended (26 U.S.C. 5205, 5206, 5301))

[T.D. ATF-62, 44 FR 71722, Dec. 11, 1979; as amended by T.D. ATF-206, 50 FR 23956, June 7, 1985]

§ 28.95 Change of packages for exportation.

Whenever the exporter desires to transfer distilled spirits from packages filled in internal revenue bond to such other suitable packages as may be desired for exportation, such change of packages shall be made under the procedures of part 19 of this chapter, prior to the preparation of TTB Form 5100.11 covering the removal of the distilled spirits.

(Sec. 201, Pub. L. 85-859, 72 Stat. 1358, as amended, 1360, as amended, 1374, as amended (26 U.S.C. 5205, 5206, 5301))

[T.D. ATF-62, 44 FR 71722, Dec. 11, 1979, as amended by T.D. TTB-8, 69 FR 3832, Jan. 27, 2004]

§ 28.96 Approval of application.

When filed as an application, and TTB Form 5100.11 has been properly executed, and the required bond has been filed in a sufficient amount, the appropriate TTB officer shall approve the application on all copies of the form and send them to the proprietor of the bonded premises from which the spirits will be withdrawn.

(Sec. 201, Pub. L. 85-859, 72 Stat. 1362, as amended (26 U.S.C. 5214))

[T.D. ATF-62, 44 FR 71722, Dec. 11, 1979, as amended by T.D. ATF-198, 50 FR 8559, Mar. 1, 1985; T.D. TTB-8, 69 FR 3832, Jan. 27, 2004]

§ 28.97 [Reserved]

§ 28.98 Inspection and regauge.

The proprietor shall inspect all containers to be withdrawn pursuant to TTB Form 5100.11 and shall regauge all

§ 1000.175

§ 1000.175 What is the process for conducting the negotiation phase?

(a) Within 30 days of receiving a written request to negotiate, the bureau and the Tribe/Consortium will agree to a date to conduct an initial negotiation meeting. Subsequent meetings will be held with reasonable frequency at reasonable times.

(b) Tribe/Consortium and bureau lead negotiators must:

(1) Be authorized to negotiate on behalf of their government; and

(2) Involve all necessary persons in the negotiation process.

(c) Once negotiations have been successfully completed, the bureau and Tribe/Consortium will prepare and either execute or disapprove an AFA within 30 days or by a mutually agreed upon date.

§ 1000.176 What issues must the bureau and the Tribe/Consortium address at negotiation meetings?

The negotiation meetings referred to in § 1000.175 must address at a minimum the following:

(a) The specific Tribe/Consortium proposal(s) and intentions;

(b) Legal or program issues that the bureau or the Tribe/Consortium identify as concerns;

(c) Options for negotiating programs and related budget amounts, including mutually agreeable options for developing alternative formats for presenting budget information to the Tribe/Consortium;

(d) Dates for conducting and concluding negotiations;

(e) Protocols for conducting negotiations;

(f) Responsibility for preparation of a written summary of the discussions; and

(g) Who will prepare an initial draft of the AFA.

§ 1000.177 What happens when the AFA is signed?

(a) After all parties have signed the AFA, a copy is sent to the Tribe/Consortium.

(b) The Secretary forwards copies of the AFA to:

(1) The House Subcommittee on Native Americans and Insular Affairs; and

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(2) The Senate Committee on Indian Affairs;

(c) For BIA programs, the AFA is also forwarded to each Indian Tribe/Consortium served by the BIA Agency that serves any Tribe/Consortium that is a party to the AFA.

§ 1000.178 When does the AFA become effective?

The effective date is not earlier than 90 days after the AFA is submitted to the Congressional committees under § 1000.177(b).

§ 1000.179 What happens if the Tribe/Consortium and bureau negotiators fail to reach an agreement?

(a) If the Tribe/Consortium and bureau representatives do not reach agreement during the negotiation phase by the mutually agreed to date for completing negotiations, the Tribe/Consortium and the bureau may each make a last and best offer to the other party.

(b) If a last and best offer is not accepted within 15 days, the bureau will provide a written explanation to the Tribe/Consortium explaining its reasons for not entering into an AFA for the requested program, together with the applicable statement prescribed in subpart R of this part, concerning appeal or review rights.

(c) The Tribe/Consortium has 30 days from receipt of the bureau's written explanation to file an appeal. Appeals are handled in accordance with subpart R of this part.

NEGOTIATION PROCESS FOR SUCCESSOR ANNUAL FUNDING AGREEMENTS

§ 1000.180 What is a successor AFA?

A successor AFA is a funding agreement negotiated after a Tribe's/Consortium's initial agreement with a bureau for continuing to perform a particular program. The parties to the AFA should generally use the terms of the existing AFA to expedite and simplify the exchange of information and the negotiation process.

§ 1000.181 How does the Tribe/Consortium initiate the negotiation of a successor AFA?

Although a written request is desirable to document the precise request

Table 37. Specified Crops by Acres Harvested: 2012 and 2007

[Totals may not add due to rounding. For meaning of abbreviations and symbols, see introductory text.]

Crop	2012					2007				
	Farms	Acres	Quantity	Irrigated land		Farms	Acres	Quantity	Irrigated land	
				Farms	Acres				Farms	Acres
FIELD CROPS										
Barley for grain (bushels)	26	1,731	59,684	10	606	35	1,777	81,963	10	526
Canola (pounds)	3	90	15,000	-	-	4	95	186,250	1	(D)
Corn for grain (bushels)	22,977	9,087,851	1,188,509,521	13,799	5,287,913	22,812	9,192,656	1,426,459,812	14,107	5,839,067
1 to 14 acres	665	5,487	398,281	149	1,214	512	4,060	452,921	101	765
15 to 24 acres	626	12,088	953,416	153	2,738	549	10,653	1,188,930	132	2,446
25 to 49 acres	1,570	56,945	5,055,885	520	17,269	1,600	58,228	6,845,980	416	14,044
50 to 99 acres	3,247	232,483	23,760,705	1,427	91,824	3,145	224,671	28,804,362	1,249	80,201
100 to 249 acres	6,061	985,654	106,046,656	3,378	445,862	6,036	988,286	136,427,165	3,319	444,561
250 to 499 acres	5,157	1,824,242	213,970,605	3,443	895,746	5,046	1,783,776	265,482,299	3,644	981,442
500 to 999 acres	3,544	2,414,027	320,770,365	2,805	1,416,183	3,813	2,607,977	409,997,154	3,259	1,710,834
1,000 acres or more	2,107	3,556,925	517,553,608	1,924	2,417,077	2,111	3,515,005	577,261,001	1,987	2,604,774
1,000 to 1,999 acres	1,657	2,190,146	315,297,423	1,484	1,451,512	1,634	2,168,013	352,764,183	1,527	1,563,125
2,000 to 2,999 acres	307	716,678	105,008,943	299	501,491	360	853,564	139,635,324	344	663,517
3,000 to 4,999 acres	103	366,727	53,757,359	101	(D)	96	356,464	61,615,041	95	271,475
5,000 acres or more	40	283,374	43,489,883	40	(D)	21	136,964	23,246,453	21	106,657
Corn for silage or greenchop (tons)	4,232	446,386	4,605,604	1,223	117,057	2,671	185,584	3,171,470	1,295	101,256
1 to 14 acres	379	3,424	33,136	118	1,010	374	3,578	50,073	146	1,334
15 to 24 acres	492	9,347	90,407	141	2,289	475	8,837	127,671	184	3,125
25 to 49 acres	967	34,093	332,344	221	6,167	742	25,308	394,089	334	10,389
50 to 99 acres	1,064	72,041	700,987	298	16,751	586	38,100	623,273	308	18,199
100 to 249 acres	955	139,231	1,336,971	293	30,543	393	56,271	994,294	245	30,527
250 to 499 acres	271	89,367	861,309	102	22,428	73	24,694	450,740	54	15,620
500 to 999 acres	74	48,917	601,668	39	17,256	22	15,201	270,155	18	10,276
1,000 acres or more	30	49,966	648,782	11	20,613	6	13,595	261,175	6	11,786
Dry edible beans, excluding limas (cwt)	578	132,697	3,050,199	560	127,509	495	107,583	2,453,158	482	104,748
1 to 14 acres	7	42	1,298	5	(D)	11	93	2,029	11	93
15 to 24 acres	26	499	15,129	24	(D)	15	287	5,089	15	279
25 to 49 acres	70	2,511	51,950	64	2,296	40	1,482	31,750	40	1,477
50 to 99 acres	86	5,957	135,753	85	(D)	87	5,979	134,822	82	5,593
100 to 249 acres	213	33,463	737,294	206	32,198	196	30,238	685,512	189	29,238
250 to 499 acres	106	35,087	773,508	106	34,097	95	30,515	707,444	94	30,065
500 to 999 acres	57	37,715	884,290	57	36,750	41	26,356	581,056	41	25,370
1,000 to 1,999 acres	13	17,423	450,977	13	15,778	10	12,633	305,456	10	12,633
2,000 acres or more	-	-	-	-	-	-	-	-	-	-
Dry edible peas (cwt)	43	6,644	74,669	5	506	6	177	2,913	-	-
Hops (pounds)	6	6	900	-	-	-	-	-	-	-
Oats for grain (bushels)	476	17,788	905,529	39	1,569	885	35,108	2,108,923	67	3,052
1 to 14 acres	146	1,126	63,353	4	(D)	261	2,226	132,843	9	(D)
15 to 24 acres	109	2,051	94,258	9	82	172	3,212	191,955	13	150
25 to 49 acres	113	3,877	201,535	4	14	243	8,086	486,546	11	343
50 to 99 acres	71	4,646	230,122	13	793	133	8,886	500,862	21	1,032
100 to 249 acres	33	4,700	246,032	8	627	66	9,167	599,109	11	1,278
250 to 499 acres	4	1,388	70,229	1	(D)	10	3,531	197,608	2	(D)
500 to 999 acres	-	-	-	-	-	-	-	-	-	-
1,000 acres or more	-	-	-	-	-	-	-	-	-	-
Popcorn (pounds, shelled)	242	70,879	353,711,118	229	66,609	253	59,728	294,541,958	232	57,095
1 to 14 acres	5	34	(D)	5	31	8	(D)	(D)	2	(D)
15 to 24 acres	1	(D)	(D)	1	(D)	4	(D)	(D)	3	60
25 to 49 acres	11	(D)	1,829,253	9	(D)	18	711	3,489,681	10	(D)
50 to 99 acres	26	1,884	8,395,840	26	1,796	37	2,691	10,645,778	31	2,134
100 to 249 acres	95	14,012	65,242,282	91	13,289	105	16,302	77,035,512	105	15,643
250 to 499 acres	71	22,712	117,763,317	64	20,231	58	19,064	94,737,828	58	18,452
500 to 999 acres	20	14,003	69,231,805	20	13,864	16	10,693	57,798,328	16	10,575
1,000 acres or more	13	17,777	91,093,795	13	17,031	7	10,136	50,318,012	7	9,833
Proso millet (bushels)	179	54,895	795,466	22	2,430	429	129,891	4,253,359	60	5,930
1 to 14 acres	6	33	411	-	-	3	7	109	1	(D)
15 to 24 acres	-	-	-	-	-	3	66	1,042	-	-
25 to 49 acres	10	(D)	(D)	-	-	31	1,159	46,627	10	(D)
50 to 99 acres	33	2,349	29,788	6	346	67	4,674	155,772	16	747
100 to 249 acres	52	8,071	100,414	10	876	144	22,506	722,794	17	2,215
250 to 499 acres	43	15,017	159,122	3	(D)	102	36,186	1,099,472	9	638
500 to 999 acres	26	16,766	259,361	3	(D)	66	44,761	1,502,828	6	1,716
1,000 acres or more	9	(D)	(D)	-	-	13	20,532	724,715	1	(D)
Rye for grain (bushels)	140	6,837	170,777	26	1,843	290	15,354	443,793	41	1,952
Safflower (pounds)	22	2,992	1,859,202	2	(D)	4	206	254,840	-	-
Sorghum for grain (bushels)	633	60,010	3,622,070	111	8,710	1,901	236,607	22,177,229	299	19,445
1 to 14 acres	78	(D)	(D)	21	191	102	942	68,696	14	99
15 to 24 acres	69	1,325	(D)	7	103	128	2,421	197,760	24	352
25 to 49 acres	144	5,035	347,102	19	(D)	388	13,959	1,179,079	60	1,326
50 to 99 acres	165	11,431	688,290	36	1,397	520	36,642	3,278,453	70	3,371
100 to 249 acres	128	19,386	1,226,661	12	1,312	528	80,180	7,460,965	71	5,910
250 to 499 acres	33	11,172	590,337	8	1,454	180	59,836	5,594,084	45	7,051
500 to 999 acres	15	8,843	493,458	7	1,630	45	30,301	3,211,052	12	1,261
1,000 acres or more	1	(D)	(D)	1	(D)	10	12,326	1,187,140	3	75
Sorghum for silage or greenchop (tons)	240	11,677	109,704	59	3,744	444	20,376	235,551	100	6,300
1 to 14 acres	60	499	3,859	4	(D)	104	932	10,708	9	60
15 to 24 acres	51	981	9,163	7	98	84	1,591	18,461	14	233
25 to 49 acres	56	1,887	24,357	14	448	106	3,580	44,187	19	544
50 to 99 acres	43	2,842	33,261	21	1,195	100	6,346	72,869	37	2,074
100 to 249 acres	23	3,250	19,227	7	792	44	5,807	66,603	17	2,072
250 to 499 acres	7	2,218	19,837	6	(D)	6	2,120	22,723	4	1,317
500 to 999 acres	-	-	-	-	-	-	-	-	-	-
1,000 acres or more	-	-	-	-	-	-	-	-	-	-
Soybeans for beans (bushels)	18,539	4,983,253	193,014,515	9,384	2,075,317	16,620	3,834,855	189,547,373	8,088	1,570,110
1 to 14 acres	547	4,493	118,508	64	568	412	3,541	144,809	55	445

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Table 37. Specified Crops by Acres Harvested: 2012 and 2007 (continued)

[Totals may not add due to rounding. For meaning of abbreviations and symbols, see introductory text.]

Crop	2012					2007				
	Farms	Acres	Quantity	Irrigated land		Farms	Acres	Quantity	Irrigated land	
				Farms	Acres				Farms	Acres
FIELD CROPS - Con.										
Soybeans for beans (bushels) - Con.										
15 to 24 acres	538	10,492	302,153	136	2,435	573	11,160	478,529	130	2,270
25 to 49 acres	1,615	58,574	1,651,242	441	14,139	1,615	59,347	2,675,458	446	14,363
50 to 99 acres	3,004	214,215	7,292,327	1,190	73,777	3,230	230,107	10,854,104	1,256	76,387
100 to 249 acres	5,810	946,819	34,925,170	2,985	369,529	5,450	880,639	42,551,795	2,791	344,470
250 to 499 acres	4,293	1,493,884	57,691,399	2,640	623,978	3,483	1,204,023	59,724,992	2,153	515,984
500 to 999 acres	2,113	1,387,817	56,966,820	1,461	618,365	1,520	990,747	50,186,729	1,010	431,490
1,000 acres or more	619	866,959	34,066,896	467	372,526	337	455,291	22,930,957	247	184,701
1,000 to 1,999 acres	572	722,894	28,358,312	427	311,533	314	390,243	19,769,271	227	154,592
2,000 to 2,999 acres	31	75,178	2,902,548	24	27,686	15	32,865	1,588,968	14	16,635
3,000 to 4,999 acres	12	43,749	1,697,204	12	22,201	7	(D)	(D)	5	(D)
5,000 acres or more	4	25,138	1,108,832	4	11,106	1	(D)	(D)	1	(D)
Sugarbeets for sugar (tons)	172	51,671	1,449,966	172	51,671	162	44,938	1,064,504	162	44,938
1 to 14 acres	-	-	-	-	-	3	30	751	3	30
15 to 24 acres	3	60	1,926	3	60	-	-	-	-	-
25 to 49 acres	16	(D)	(D)	16	(D)	13	(D)	(D)	13	(D)
50 to 99 acres	20	1,490	40,566	20	1,490	30	2,223	51,250	30	2,223
100 to 249 acres	63	8,771	223,283	63	8,771	57	8,651	198,829	57	8,651
250 to 499 acres	38	13,286	367,624	38	13,286	37	12,413	285,824	37	12,413
500 to 999 acres	23	14,678	418,817	23	14,678	14	9,595	228,059	14	9,595
1,000 to 1,999 acres	8	10,064	300,757	8	10,064	7	8,512	222,555	7	8,512
2,000 acres or more	1	(D)	(D)	1	(D)	1	(D)	(D)	1	(D)
Sunflower seed, all (pounds)	144	39,115	27,474,025	41	5,911	222	47,575	61,133,340	104	15,362
1 to 14 acres	6	40	16,000	-	-	4	23	25,512	4	23
15 to 24 acres	5	100	40,000	-	-	3	55	84,308	3	41
25 to 49 acres	6	205	266,112	3	102	18	(D)	(D)	9	318
50 to 99 acres	37	2,601	2,240,048	10	525	36	2,538	3,248,720	14	905
100 to 249 acres	45	7,604	6,294,234	15	1,519	92	13,888	18,410,892	42	5,402
250 to 499 acres	26	8,759	5,701,097	4	922	44	14,772	21,590,744	22	4,473
500 to 999 acres	10	6,056	3,242,617	2	(D)	24	14,195	15,273,958	10	4,200
1,000 acres or more	9	13,750	9,673,917	7	(D)	1	(D)	(D)	-	-
Sunflower seed - oil varieties (pounds)	121	30,073	21,579,622	31	4,447	163	34,104	42,461,345	64	9,285
1 to 14 acres	6	40	16,000	-	-	4	22	24,012	4	22
15 to 24 acres	5	100	40,000	-	-	3	55	84,308	3	41
25 to 49 acres	5	(D)	(D)	2	(D)	14	(D)	(D)	4	106
50 to 99 acres	31	2,158	1,740,546	7	310	29	2,108	2,368,199	8	520
100 to 249 acres	39	6,684	4,805,256	10	799	62	9,927	13,474,636	24	3,148
250 to 499 acres	23	7,345	5,037,258	5	1,043	35	11,335	15,440,975	13	2,025
500 to 999 acres	5	(D)	(D)	1	(D)	15	8,729	8,819,409	8	3,423
1,000 acres or more	7	(D)	(D)	6	(D)	1	(D)	(D)	-	-
Sunflower seed - non-oil varieties (pounds)	34	9,042	5,894,403	11	1,464	69	13,471	18,671,995	41	6,077
Wheat for grain, all (bushels)	5,013	1,309,269	51,650,730	836	110,220	8,037	1,964,302	81,748,076	1,711	256,119
1 to 14 acres	230	2,096	82,345	35	289	336	2,972	107,761	32	209
15 to 24 acres	326	6,278	238,117	39	640	466	9,092	350,934	35	549
25 to 49 acres	715	25,062	1,022,846	77	2,378	1,106	39,475	1,501,040	107	3,084
50 to 99 acres	937	66,859	2,844,852	131	7,350	1,627	114,901	4,559,655	264	14,837
100 to 249 acres	1,306	204,898	8,470,799	217	22,606	2,194	344,971	14,000,436	540	59,569
250 to 499 acres	741	254,881	10,394,631	153	25,174	1,213	424,603	18,364,673	383	70,115
500 to 999 acres	505	343,350	13,432,430	122	27,399	734	490,515	20,725,070	213	52,691
1,000 acres or more	253	405,845	15,164,710	62	24,384	361	537,773	22,138,507	137	55,065
1,000 to 1,999 acres	203	263,147	9,940,517	51	16,661	306	392,478	16,275,125	115	38,241
2,000 to 2,999 acres	29	(D)	2,820,856	6	4,147	43	97,883	4,040,809	15	11,410
3,000 to 4,999 acres	20	70,010	(D)	5	3,576	10	(D)	(D)	5	(D)
5,000 acres or more	1	(D)	(D)	-	-	2	(D)	(D)	2	(D)
Winter wheat for grain (bushels)	4,951	1,302,674	51,442,415	824	109,252	7,895	1,955,736	81,449,590	1,681	253,681
1 to 14 acres	218	1,965	(D)	35	(D)	309	2,710	97,243	31	199
15 to 24 acres	322	6,204	(D)	39	640	441	8,579	332,445	30	464
25 to 49 acres	701	24,591	1,005,523	74	(D)	1,069	38,238	1,461,006	102	2,937
50 to 99 acres	923	65,970	2,822,848	126	7,062	1,592	112,511	4,474,033	253	14,233
100 to 249 acres	1,293	202,984	8,394,415	213	22,084	2,180	343,184	13,954,653	536	59,215
250 to 499 acres	740	254,829	10,388,050	154	25,321	1,211	423,816	18,331,144	379	69,375
500 to 999 acres	502	341,441	13,374,970	121	27,252	733	490,050	20,720,677	214	52,603
1,000 acres or more	252	404,690	15,142,878	62	24,319	360	536,648	22,078,389	136	54,655
1,000 to 1,999 acres	202	261,992	9,918,685	51	16,596	305	391,353	16,215,007	114	37,831
2,000 to 2,999 acres	29	(D)	2,820,856	6	4,147	43	97,883	4,040,809	15	11,410
3,000 to 4,999 acres	20	70,010	(D)	5	3,576	10	(D)	(D)	5	(D)
5,000 acres or more	1	(D)	(D)	-	-	2	(D)	(D)	2	(D)
Other Spring wheat for grain (bushels)	78	6,595	208,315	14	968	164	8,566	298,486	35	2,438
HAY, FORAGE, AND FIELD AND GRASS SEEDS										
Field and grass seed crops, all	33	3,905	(X)	10	318	60	3,769	(X)	13	1,183
Alfalfa seed (pounds)	3	127	10,405	1	(D)	29	545	21,216	2	(D)
Ryegrass seed (pounds)	3	156	31,638	2	(D)	-	-	-	-	-
Forage - land used for all hay and all haylage, grass silage, and greenchop (tons, dry equivalent) (see text)										
1 to 14 acres	20,034	2,487,312	4,728,985	4,400	396,397	20,576	2,563,515	6,289,171	5,024	494,391
15 to 24 acres	3,671	30,253	58,963	320	2,349	3,839	31,090	78,165	354	2,624
25 to 49 acres	2,721	51,222	108,139	283	4,492	2,586	48,804	128,293	308	4,987
50 to 99 acres	4,109	144,105	329,412	745	20,530	4,164	145,918	432,159	771	21,272
100 to 249 acres	3,794	260,549	609,309	1,008	54,295	3,935	269,454	833,596	1,128	57,880
250 to 499 acres	3,513	529,455	1,217,587	1,255	122,800	3,667	552,439	1,705,938	1,466	147,906
500 to 999 acres	1,205	414,125	870,062	478	93,084	1,410	478,044	1,294,608	652	131,295
1,000 acres or more	668	436,538	730,767	228	63,663	640	427,738	902,411	233	73,698
1,000 to 1,999 acres	353	621,065	804,746	83	35,184	335	610,028	914,001	112	54,729
2,000 to 2,999 acres	245	306,113	429,639	55	20,552	238	301,511	505,923	82	33,454
3,000 to 4,999 acres	72	155,840	168,208	16	7,072	57	130,162	167,670	18	(D)

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Table 37. Specified Crops by Acres Harvested: 2012 and 2007 (continued)

[Totals may not add due to rounding. For meaning of abbreviations and symbols, see introductory text.]

Crop	2012					2007				
	Farms	Acres	Quantity	Irrigated land		Farms	Acres	Quantity	Irrigated land	
				Farms	Acres				Farms	Acres
HAY, FORAGE, AND FIELD AND GRASS SEEDS - Con.										
Forage - land used for all hay and all haylage, grass silage, and greenchop (tons, dry equivalent) (see text) - Con.										
3,000 to 4,999 acres	22	77,586	118,648	9	6,393	28	103,037	162,349	11	12,636
5,000 acres or more	14	81,526	88,251	3	1,167	12	75,318	78,060	1	(D)
Hay - All hay including alfalfa, other tame, small grain, and wild (tons, dry) (see text)										
1 to 14 acres	3,613	29,727	59,334	315	2,280	3,752	30,354	76,310	355	2,607
15 to 24 acres	2,626	49,587	106,341	277	4,382	2,550	48,186	123,829	296	4,751
25 to 49 acres	4,052	142,122	321,926	742	20,490	4,038	141,804	409,182	739	20,451
50 to 99 acres	3,712	254,167	589,007	975	52,829	3,897	267,160	798,294	1,093	56,008
100 to 249 acres	3,431	518,900	1,187,033	1,232	121,138	3,653	551,904	1,651,048	1,469	146,731
250 to 499 acres	1,170	401,708	834,566	467	90,984	1,417	482,930	1,267,538	654	128,287
500 to 999 acres	660	431,212	716,420	219	63,908	647	436,079	909,002	237	77,047
1,000 acres or more	351	616,180	790,698	82	33,734	335	609,494	871,496	113	49,857
1,000 to 1,999 acres	244	303,533	424,935	54	19,382	239	303,420	504,756	86	33,513
2,000 to 2,999 acres	71	153,815	164,266	16	7,072	57	130,127	154,779	16	(D)
3,000 to 4,999 acres	22	77,586	113,705	9	6,393	27	99,829	133,901	10	8,855
5,000 acres or more	14	81,246	87,792	3	887	12	76,118	78,060	1	(D)
Alfalfa hay (tons, dry)										
1 to 14 acres	13,280	885,885	2,737,484	3,735	303,659	14,820	1,085,921	3,955,881	4,405	389,516
15 to 24 acres	2,904	23,740	59,596	348	2,680	3,105	25,276	76,227	382	2,934
25 to 49 acres	2,105	39,822	107,540	309	5,132	2,105	39,942	128,278	334	5,287
50 to 99 acres	3,189	111,375	326,945	820	24,507	3,378	118,241	412,057	845	24,547
100 to 249 acres	2,610	176,731	527,628	961	54,316	3,025	204,987	749,510	1,133	63,619
250 to 499 acres	1,882	273,502	859,551	947	108,025	2,422	353,590	1,318,678	1,227	135,926
500 to 999 acres	449	151,600	484,289	266	64,298	601	201,388	759,491	360	87,777
1,000 acres or more	117	73,318	239,201	68	31,066	156	99,358	346,107	103	47,444
1,000 to 1,999 acres	24	35,797	132,734	16	13,635	28	43,139	165,533	21	21,982
2,000 to 2,999 acres	20	24,972	93,118	14	(D)	23	27,976	115,092	18	(D)
3,000 to 4,999 acres	2	(D)	(D)	1	(D)	3	(D)	(D)	2	(D)
5,000 acres or more	2	(D)	(D)	1	(D)	2	(D)	(D)	1	(D)
Small grain hay (tons, dry)										
1 to 14 acres	1,543	99,990	167,945	340	23,908	1,871	104,301	222,395	391	28,872
15 to 24 acres	304	2,432	4,017	21	119	452	3,682	6,883	46	340
25 to 49 acres	222	4,217	5,806	23	390	330	6,237	12,365	30	509
50 to 99 acres	388	13,537	23,382	90	2,957	428	14,737	30,279	78	2,394
100 to 249 acres	344	22,467	40,321	99	5,751	371	24,388	56,977	117	6,769
250 to 499 acres	219	31,269	61,258	83	8,746	245	34,838	80,911	100	12,468
500 to 999 acres	54	17,612	24,895	21	4,675	39	12,817	24,014	17	5,192
1,000 acres or more	12	8,456	8,266	3	1,270	3	2,102	(D)	1	(D)
Other tame hay (tons, dry)										
1 to 14 acres	3,744	315,357	469,831	517	35,160	4,048	278,810	555,048	578	42,600
15 to 24 acres	1,037	8,342	11,683	64	374	1,228	9,578	17,577	78	464
25 to 49 acres	586	10,771	13,384	49	674	663	12,288	24,006	66	924
50 to 99 acres	727	24,832	35,700	107	2,787	790	27,441	59,552	81	2,332
100 to 249 acres	647	44,601	74,097	131	7,195	657	44,454	104,624	144	8,090
250 to 499 acres	475	71,454	116,379	114	11,782	503	71,987	165,820	161	17,588
500 to 999 acres	178	60,787	96,780	40	8,420	144	48,160	96,974	37	8,155
1,000 acres or more	63	38,037	46,722	8	2,367	45	28,553	43,337	7	3,955
Wild hay (tons, dry)										
1 to 14 acres	6,619	1,142,371	1,230,065	375	27,018	6,447	1,098,879	1,373,375	345	24,751
15 to 24 acres	1,390	11,131	12,634	47	300	1,419	11,149	17,049	39	208
25 to 49 acres	944	17,799	20,790	47	606	946	17,554	26,478	32	396
50 to 99 acres	1,245	43,379	49,053	69	1,476	1,248	43,098	64,732	74	1,825
100 to 249 acres	998	67,164	78,880	45	2,202	903	60,001	86,991	61	2,146
250 to 499 acres	1,014	156,326	166,006	83	6,579	913	134,742	191,097	61	4,554
500 to 999 acres	412	142,682	154,523	36	4,320	448	154,579	193,419	49	8,306
1,000 acres or more	351	232,557	252,162	30	4,445	320	219,424	289,059	19	2,471
1,000 to 1,999 acres	265	471,333	496,017	18	7,090	250	458,332	504,550	10	4,845
2,000 to 2,999 acres	182	228,322	261,115	12	5,083	175	223,531	267,682	8	(D)
3,000 to 4,999 acres	55	119,893	104,462	4	(D)	46	103,300	103,260	1	(D)
5,000 acres or more	17	59,402	58,353	2	(D)	19	71,239	69,327	1	(D)
All haylage, grass silage, and greenchop (tons, green)										
1 to 14 acres	1,032	66,677	250,251	249	17,014	962	62,362	369,152	244	21,828
15 to 24 acres	235	1,907	5,396	20	(D)	244	2,051	9,540	34	242
25 to 49 acres	173	3,221	11,599	29	453	144	2,680	11,438	19	299
50 to 99 acres	226	7,859	37,499	65	1,874	239	8,096	47,039	56	1,612
100 to 249 acres	206	14,227	52,000	65	4,189	166	11,236	60,306	52	2,877
250 to 499 acres	154	21,484	84,702	55	5,935	138	19,317	122,253	64	7,613
500 to 999 acres	32	10,721	35,707	12	2,030	17	5,655	36,814	10	1,761
1,000 acres or more	3	2,114	5,968	2	(D)	9	5,611	19,462	5	1,884
Haylage or greenchop from alfalfa or alfalfa mixtures (tons, green)										
1 to 14 acres	395	29,253	135,364	153	11,825	418	35,845	249,074	154	14,883
15 to 24 acres	70	497	2,282	8	48	66	568	3,446	19	144
25 to 49 acres	62	1,176	7,024	19	(D)	58	1,096	5,956	12	199
50 to 99 acres	86	3,067	18,708	36	1,104	99	3,439	21,396	30	(D)
100 to 249 acres	82	5,701	21,254	36	2,198	88	5,887	35,772	31	1,840
250 to 499 acres	78	10,922	53,612	43	4,570	85	11,496	88,197	48	5,517
500 to 999 acres	14	4,576	17,485	9	1,300	12	3,803	30,393	8	1,884
1,000 acres or more	2	(D)	(D)	1	(D)	7	4,367	16,286	4	1,240
Other haylage, grass silage, and greenchop, excluding corn and sorghum silage (tons, green)										
1 to 14 acres	672	37,424	114,887	103	5,189	575	26,517	120,078	95	6,945
15 to 24 acres	185	1,548	3,751	20	(D)	194	1,611	6,749	19	110
25 to 49 acres	117	2,153	5,417	13	190	91	1,689	6,194	7	(D)
50 to 99 acres	148	5,085	20,294	27	818	148	5,000	27,955	27	737
100 to 249 acres	125	8,505	29,603	27	1,898	81	5,563	27,380	22	1,258
5,000 acres or more	77	10,656	31,839	14	1,510	53	8,000	34,371	17	2,478

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Table 37. Specified Crops by Acres Harvested: 2012 and 2007 (continued)

[Totals may not add due to rounding. For meaning of abbreviations and symbols, see introductory text.]

Crop	2012					2007				
	Farms	Acres	Quantity	Irrigated land		Farms	Acres	Quantity	Irrigated land	
				Farms	Acres				Farms	Acres
HAY, FORAGE, AND FIELD AND GRASS SEEDS - Con.										
All haylage, grass silage, and greenchop (tons, green) - Con.										
Other haylage, grass silage, and greenchop, excluding corn and sorghum silage (tons, green) - Con.										
250 to 499 acres	17	5,633	15,834	2	(D)	5	1,732	(D)	1	(D)
500 to 999 acres	1	(D)	(D)	-	-	2	(D)	(D)	1	(D)
1,000 acres or more	2	(D)	(D)	-	-	1	(D)	(D)	1	(D)
OTHER SPECIFIED CROPS										
Land in vegetables (see text)	474	25,931	(X)	267	24,098	340	23,622	(X)	182	20,945
0.1 to 0.9 acres	208	93	(X)	110	47	102	41	(X)	47	(D)
1.0 to 4.9 acres	165	322	(X)	93	155	134	242	(X)	66	101
5.0 to 14.9 acres	49	415	(X)	27	204	43	361	(X)	20	146
15.0 to 24.9 acres	13	236	(X)	3	(D)	6	119	(X)	3	(D)
25.0 to 49.9 acres	5	(D)	(X)	5	114	15	518	(X)	12	316
50.0 to 99.9 acres	8	507	(X)	7	(D)	9	585	(X)	6	329
100.0 to 249.9 acres	5	713	(X)	2	(D)	6	792	(X)	5	609
250.0 to 499.9 acres	6	2,282	(X)	6	2,282	12	3,723	(X)	11	3,458
500.0 to 749.9 acres	6	3,319	(X)	5	(D)	4	2,474	(X)	4	2,405
750.0 to 999.9 acres	1	(D)	(X)	1	(D)	-	-	(X)	-	-
1,000.0 acres or more	8	16,919	(X)	8	16,905	9	14,767	(X)	8	13,520
Land in orchards (see text)	372	1,286	(X)	131	339	339	1,500	(X)	140	456
Land in berries (see text)	140	144	(X)	34	43	68	78	(X)	27	49

DECISION



THE COMPTROLLER GENERAL
OF THE UNITED STATES
WASHINGTON, D.C. 20548

FILE: B-208523

DATE: April 13, 1983

MATTER OF: Massachusetts National Guard Technicians

DIGEST:

Massachusetts National Guard technicians who had elected State rather than Federal retirement coverage, as provided in the National Guard Technicians Act of 1968, improperly converted to Federal Civil Service retirement after they separated from the Massachusetts National Guard and were later rehired. No reimbursement is allowable for interest expense to restore state retirement coverage, even though the costs accrued because of mistaken and unauthorized conversion to the Federal Civil Service retirement system. The Government is not liable for the unauthorized acts of its agents. Further, without a statutory or contractual provision for interest and attorney fees claimed, reimbursement of these items must be denied.

Several Massachusetts National Guard technicians claim reimbursement for costs of interest and attorney fees they indicate they incurred because they were mistakenly placed under the Federal Civil Service retirement system without authority. The National Guard Bureau, Departments of the Army and the Air Force, in submitting the technicians' claims to us, recommends payment because of the mistake, but states it could find no authority to allow the claims.

We find that the claims may not be paid because there is no contractual or statutory provision permitting reimbursement of the interest or attorney fees requested. Without such authority losses arising from mistaken and unauthorized actions of agency officers and employees may not be paid by the Government.

Background

The claimants were employed as civilian technicians with the Massachusetts National Guard when the National Guard Technicians Act of 1968, became effective in January

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1969. See Public Law 90-486, 82 Stat. 755, August 13, 1968 (32 U.S.C. § 709 and § 709 notes). Under that Act, National Guard technicians were changed from state employees to Federal employees. Since many technicians were participating in state retirement programs, section 6 of the Act authorized them to elect before January 1, 1969, to remain covered by their state retirement system rather than switch to the Federal Civil Service retirement system. For those who elected to remain with their state system, section 6 of the Act also provided authority for the Federal Government to make the required employer's contributions to the state system.

The claimants in this case elected to remain covered by the Massachusetts State retirement system rather than the Federal system. At the time of election, they were informed that their choice to retain Massachusetts State retirement coverage was an irrevocable option for as long as they were continually employed by the Massachusetts National Guard. However, they were also told by National Guard officials that they would be converted to the Federal Civil Service retirement system if after separating from employment they were rehired by the Massachusetts National Guard after the effective date of the Technicians Act. Later they did separate, and after a break in service the Massachusetts National Guard rehired them as technicians. They then withdrew their contributions that had accumulated in the Massachusetts State retirement system and were converted to Federal Civil Service retirement coverage. For periods up to 10 years, Federal retirement deductions were made from the claimants' pay and, along with the Federal employer's contributions, were transferred to the Civil Service Retirement and Disability Fund.

However, in 1977 a question arose as to the propriety of these actions, and the Personnel Officer of the Massachusetts National Guard sought clarification from the United States Civil Service Commission (now Office of Personnel Management). By letter of December 16, 1977, an official of the Civil Service Commission informed the Personnel Officer of the Massachusetts State National Guard that under Public Law 90-486 an election in 1969 to remain in a state retirement system was final, and a National Guard technician could not convert to Federal Civil Service retirement upon being rehired as a technician in the same

state after a break in service. This information revealed that the claimants conversion to Federal Civil Service retirement had been a mistake. Consequently the claimants were transferred from the Federal Civil Service retirement system to the Massachusetts State retirement system along with the employees' and employer's contributions to the Federal system.

In addition to the transfer of contributions which took place, the claimants believe that they should be reimbursed for other costs arising from their reentry into the Massachusetts State retirement system after the intervening period when they were mistakenly under Federal retirement system.

The reimbursement requested includes two elements of interest charged the claimants in order to fully restore their Massachusetts State retirement coverage. At the commencement of the interim period under Federal Civil Service retirement, the claimants withdrew the balance of their contributions then accumulated in the Massachusetts State retirement system. All of the claimants request reimbursement of interest that would have accrued on this balance during the interim period had it not been withdrawn, and which they indicate the Massachusetts system requires them to pay. The second element is sought by six of the claimants who believe they are entitled to reimbursement of interest on additional contributions that they would have paid into the Massachusetts State retirement system had they not left that system during the interim period.

In addition, two of the claimants through their attorney request the difference between their payroll deductions (7 percent of their pay) for Federal Civil Service retirement during the interim period and what they say their contributions to the Massachusetts State retirement system (5 percent of their pay) would have been if they had continued that coverage uninterrupted. These two claimants also ask that their attorney fees for presenting the claims be paid.

Applicable Law and Conclusions

Concerning the technicians' eligibility to be covered by the Federal Civil Service retirement system, that was a

matter for determination by the Civil Service Commission (now Office of Personnel Management) which has the authority to administer that system. 5 U.S.C. § 8347; 55 Comp. Gen. 684, 687-688 (1976); and Matter of Ortiz, B-193337, January 4, 1979. As to the irrevocability of elections to remain under state retirement coverage pursuant to the National Guard Technicians Act, the Civil Service Commission published the following information dated April 30, 1969:

"(1) * * * A technician's election to remain in a State retirement plan is irrevocable and cannot be changed later so that service credit can be allowed under the Civil Service Retirement System."

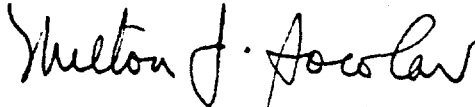
Federal Personnel Manual Supplement 831-1, Subchapter S3, paragraph S3-3, Installment 20, April 30, 1969. This provision was reissued December 10, 1971. Thus, as the Commission officially advised the National Guard Personnel Officer in the 1977 letter it was the Commission's position that a technician's choice to remain under a state retirement system was irrevocable and that conversion to Federal Civil Service retirement was unauthorized, even after a break in service and reemployment with the state.

It appears that the corrective action taken to return the claimants to the state retirement system with concurrent transfer of funds to that system was all the action the law allows to correct the error. Although we have not been furnished a full accounting of the transfer of funds from the Federal Civil Service Retirement Fund to the Massachusetts system, we may assume that the difference between the 7 percent Federal contribution and the 5 percent Massachusetts contribution was used either to pay interest on the late deposit to the Massachusetts fund or was refunded to the employees. There is no authority we are aware of under which we could authorize payment of the claims for interest and attorney fees. However, the question of whether interest may be paid on the amounts erroneously paid into the Federal Civil Service retirement system for the period they were deposited in the Civil Service Retirement Fund is a matter for determination by the Office of Personnel Management. That office may be willing to consider further the question of appropriate interest payments with respect to the amounts erroneously paid into and held in the fund.

It is a well-settled rule of law that interest may be assessed against the Government only if provided for by contract or specifically authorized by statute. 53 Comp. Gen. 824 (1974) and Matter of Albrado, 58 Comp. Gen. 5 (1978). Similarly for payment of attorney fees, a contract or statutory authorization is required. Matter of Jackson, B-193272, August 21, 1981. Such authorization is absent in the present case.

Also, while the claimants may have incurred some expense due to the erroneous actions or advice of the National Guard officials, that alone provides no basis for us to authorize payment. In the absence of a statute providing otherwise, the United States is not responsible for the unauthorized advice or acts of its agents. Federal Crop Insurance Corp. v. Merrill, 332 U.S. 380, 384 (1947); 58 Comp. Gen. 35 (1978); 56 Comp. Gen. 85 (1976); 53 Comp. Gen. 11 (1973).

Accordingly, payment of these claims is not authorized.


for Comptroller General
of the United States